

**OFFICE OF THE SECRETARY**

P.O. Box 942883  
Sacramento, CA 94283-0001



July 23, 2018

Honorable Maria Sovey Silveira  
Judge of the Superior Court  
County of Stanislaus  
800 11th Street  
Modesto, CA 95354

Re: Garcia, Javier Antonio  
CDC No.: AM7058  
Case No.: 1250685  
Date of Sentence: August 28, 2012

Dear Honorable Maria Sovey Silveira:

The purpose of this letter is to provide the court with authority to resentence Javier Antonio Garcia pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Garcia was sentenced in 2012, and was convicted of section 245, subdivision (A)(2), Assault With A Firearm. The trial court sentenced inmate Garcia on August 28, 2012. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Garcia's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Garcia's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

  
SCOTT KERNAN  
Secretary

Enclosures:  
Abstract of Judgment-Prison Commitment-Determinate  
Minute Order  
First Amended Felony Information

cc: Honorable Ricardo Cordova, Stanislaus County Presiding Judge  
Stanislaus District Attorney  
Public Defender



AM 7058

**FELONY ABSTRACT OF JUDGMENT—DETERMINATE**  
**SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**  
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

CR-290.1

|                                                                                                                                                                                        |                          |                                                                                             |  |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|---------------------------------------------------------------------------------------------|--|
| SUPERIOR COURT OF CALIFORNIA, COUNTY OF:<br>STANISLAUS                                                                                                                                 |                          |                                                                                             |  |
| PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT:<br>JAVIER ANTONIO GARCIA<br>AKA:<br>CII NO.: A28861477<br>BOOKING NO.: 1219547<br><div style="text-align: right;">DOB: 09/12/89</div> |                          | CASE NUMBER<br>1250685                                                                      |  |
| FELONY ABSTRACT OF JUDGMENT<br><input checked="" type="checkbox"/> PRISON COMMITMENT <input type="checkbox"/> COUNTY JAIL COMMITMENT <input type="checkbox"/> AMENDED ABSTRACT         |                          | <br>CUB. |  |
| DATE OF HEARING<br>08/28/12                                                                                                                                                            |                          |                                                                                             |  |
| CLERK<br>CINDY LUNA                                                                                                                                                                    | REPORTER<br>LEEANN MCGEE | JUDGE<br>MARIE SOVEY SILVEIRA                                                               |  |
| COUNSEL FOR PEOPLE<br>TOM BRENNAN                                                                                                                                                      |                          | COUNSEL FOR DEFENDANT<br>STEVE FOLEY, ESQ.                                                  |  |
|                                                                                                                                                                                        |                          | <input checked="" type="checkbox"/> IMMEDIATE SENTENCING <input type="checkbox"/> APPOINTED |  |

1. Defendant was convicted of the commission of the following felony:

| COUNT | CODE | SECTION NUMBER | CRIME                  | YEAR CRIME COMMITTED | DATE OF CONVICTION (MO./DATE/YEAR) | CONVICTED BY |       |      | TERM (L, M, U) | SERIOUS FELONY | VIOLENT FELONY | TIME IMPOSED |      |
|-------|------|----------------|------------------------|----------------------|------------------------------------|--------------|-------|------|----------------|----------------|----------------|--------------|------|
|       |      |                |                        |                      |                                    | JURY         | COURT | PLEA |                |                |                | YRS.         | MOS. |
| 1     | PC   | 245(A)(2)      | ASSAULT WITH A FIREARM | 2008                 | 08/28/12                           |              |       | X    | U              | X              |                | 04           | 00   |

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

| COUNT | ENHANCEMENT   | TIME IMPOSED, "S," or "PS" | ENHANCEMENT     | TIME IMPOSED, "S," or "PS" | ENHANCEMENT | TIME IMPOSED, "S," or "PS" | TOTAL |
|-------|---------------|----------------------------|-----------------|----------------------------|-------------|----------------------------|-------|
| 1     | PC 12022.7(A) | 3 YEARS                    | PC 186.22(B)(1) | 10 YEARS                   |             |                            | 13 00 |

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

| ENHANCEMENT | TIME IMPOSED, "S," or "PS" | ENHANCEMENT | TIME IMPOSED, "S," or "PS" | ENHANCEMENT | TIME IMPOSED, "S," or "PS" | TOTAL |
|-------------|----------------------------|-------------|----------------------------|-------------|----------------------------|-------|
|             |                            |             |                            |             |                            |       |

4. Defendant sentenced: ☐ to county jail per PC 1170(h)(1) or (2) ☐ per PC 667(b)-(l) or PC 1170.12 (strike prior)  
☒ to prison per PC 1170(a) or 1170(h)(3) due to ☒ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement  
☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$3,880 per PC1202.4 (b) forthwith per PC 2085.5 if prison commitment \$3,880 per PC 1202.45 suspended unless parole is revoked.  
\$ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC1202.4 (f): ☐ \$ ☒ Amount to be determined to ☐ \* victim(s) ☐ Restitution Fund

\* ☐ Victim name(s), if known, and amount breakdown in item 8, below. \* ☐ Victim name(s) in probation officer's report.

Fine(s): \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

☐ Court Operations Assess.: \$ per PC 1465.8. ☒ Conviction Assess.: 30 per GC 70373. ☒ Other: \$ 40 per (specify): Sec. fee

6. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☒ other (specify): DNA pursuant to PC 296

7. IMMEDIATE SENTENCING: ☒ Probation to prepare and submit a post sentence report to CDCR per PC 1203c. Def't's Race / National Origin

8. Other orders (specify): Court reserves jurisdiction over restitution.

9. TOTAL TIME IMPOSED: 17 00

10. ☐ MANDATORY SUPERVISION: Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under PC 1170(h)(5)(B) as follows: Suspended portion: Served forthwith:

11. ☐ This sentence is to run concurrent with (specify):

12. Registration Required: per (specify code section):

13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.

d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

|                                         |                                                       |                            |                                                                                                                                   |                                                                 |
|-----------------------------------------|-------------------------------------------------------|----------------------------|-----------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------|
| 14. DATE SENTENCE PRONOUNCED<br>8-28-12 | CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS:<br>1,730 | ACTUAL LOCAL TIME<br>1,505 | LOCAL CONDUCT CREDITS<br>225<br><input type="checkbox"/> 2933<br><input type="checkbox"/> 2933.1<br><input type="checkbox"/> 4019 | TIME SERVED IN STATE INSTITUTION<br>DMH CDCR CRC<br>[ ] [ ] [ ] |
|-----------------------------------------|-------------------------------------------------------|----------------------------|-----------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------|

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.

☐ county jail ☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

|                    |                  |
|--------------------|------------------|
| DEPUTY'S SIGNATURE | DATE OCT 24 2012 |
|--------------------|------------------|

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1214 for determinate sentences. Attachments may be used but must be referred to in this document.

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